

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

4. MICHAEL FLEMMING V. ASHLEY FLEMMING

25FL0019

On November 12, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders, orders regarding the sale of community property, access to the community property and reimbursements to Petitioner. The parties appeared before the court for hearing on the RFO on February 19, 2026, at which time the court made orders on all issues. The court further ordered parties to be re-referred to Child Custody Recommending Counseling (CCRC) “for the limited purposes of addressing holidays/school breaks and coparenting issues.” Minute Order, Feb. 19, 2026. A review hearing was set for the present date and parties were directed to file supplemental declarations no later than 10 days prior to the hearing.

On April 7, 2026, the parties filed a Stipulation and Order Re: Judgment Pursuant to CCP 664.6. The stipulation expressly states that there is no agreement regarding the minors playing competitive soccer and that issue will be “determined at the upcoming hearing.”

The parties attended CCRC on March 26th, however the mediator filed a memo with the court stating that due to the custody stipulation filed on April 7, 2026 “[a] CCRC report will not be issued.” Appearance and Agreement Memo, May 5, 2026. Despite the mediator’s memo, there is a CCRC report dated May 6, 2026 in the court’s file that does contain agreements and recommendations. There is a Certificate of Mailing dated May 6th but it is unclear if the parties were mailed the full CCRC report or just the memorandum stating that a report would not be issued.

Petitioner’s Supplemental Declaration Re: CCRC Review was filed and served on May 22nd. Respondent’s Reply Declaration to CCRC Report and Petitioner’s Supplemental Declaration was filed and served on May 28th.

After reviewing the filings as outlined above the court finds the agreements and recommendations contained in the May 6, 2026 CCRC report to be in the best interests of the children and they are hereby adopted as the orders of the court. In addition to the foregoing, the court makes the following orders.

All minors are ordered to attend therapy at a frequency and duration as determined by the therapist. If the therapist deems therapy to be unnecessary then therapy may be discontinued. The parties are to jointly select a therapist or therapists for the minors. The agreement must be in writing prior to any appointment being made. Any changes in providers shall be agreed upon in writing by the parties. Email, text messages, or messages

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sent through a co-parenting app may be sufficient to satisfy the written requirement of this order.

Prior to enrolling the minors in any extracurricular activities, the parties are to agree, in writing, to the minor's participation in the specified activity. If one parent enrolls the minor in an extracurricular activity without the prior written consent of the other parent, then the parent who enrolled the minor shall be solely responsible for all costs associated with that activity. Email, text messages, or messages sent through a co-parenting app may be sufficient to satisfy the written requirement of this order.

As stated in the CCRC report, the parties are ordered to participate in co-parenting counseling. The parties are to attend coparenting counseling at a frequency and duration as determined by the counselor. Many of the issues raised in the supplemental declarations are issues that should be addressed in co-parenting counseling.

The court is reiterating its prior order that both parties share joint legal custody. Respondent is admonished that her continued failure to communicate with Petitioner prior to making decisions of legal custody is a violation of the court's orders and may subject her to sanctions, a change in custody, or being held in contempt of court.

Finally, regarding make-up time, if either parent misses his or her scheduled parenting time due to a mandatory work obligation and provides fourteen days' written notice, the parties are ordered to schedule make-up time within 60 days of the missed visit. The parties are to work together in good faith to select mutually agreed upon dates for the make-up time. Neither party may unreasonably withhold consent for the requested make-up time.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE MAY 6, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE CHILDREN AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. IN ADDITION TO THE FOREGOING, THE COURT MAKES THE FOLLOWING ORDERS.

ALL MINORS ARE ORDERED TO ATTEND THERAPY AT A FREQUENCY AND DURATION AS DETERMINED BY THE THERAPIST. IF THE THERAPIST DEEMS THERAPY

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TO BE UNNECESSARY THEN THERAPY MAY BE DISCONTINUED. THE PARTIES ARE TO JOINTLY SELECT A THERAPIST OR THERAPISTS FOR THE MINORS. THE AGREEMENT MUST BE IN WRITING PRIOR TO ANY APPOINTMENT BEING MADE. ANY CHANGES IN PROVIDERS SHALL BE AGREED UPON IN WRITING BY THE PARTIES. EMAIL, TEXT MESSAGES, OR MESSAGES SENT THROUGH A CO-PARENTING APP MAY BE SUFFICIENT TO SATISFY THE WRITTEN REQUIREMENT OF THIS ORDER.

PRIOR TO ENROLLING THE MINORS IN ANY EXTRACURRICULAR ACTIVITIES, THE PARTIES ARE TO AGREE, IN WRITING, TO THE MINOR'S PARTICIPATION IN THE SPECIFIED ACTIVITY. IF ONE PARENT ENROLLS THE MINOR IN AN EXTRACURRICULAR ACTIVITY WITHOUT THE PRIOR WRITTEN CONSENT OF THE OTHER PARENT, THEN THE PARENT WHO ENROLLED THE MINOR SHALL BE SOLELY RESPONSIBLE FOR ALL COSTS ASSOCIATED WITH THAT ACTIVITY. EMAIL, TEXT MESSAGES, OR MESSAGES SENT THROUGH A CO-PARENTING APP MAY BE SUFFICIENT TO SATISFY THE WRITTEN REQUIREMENT OF THIS ORDER.

AS STATED IN THE CCRC REPORT, THE PARTIES ARE ORDERED TO PARTICIPATE IN CO-PARENTING COUNSELING. THE PARTIES ARE TO ATTEND COPARENTING COUNSELING AT A FREQUENCY AND DURATION AS DETERMINED BY THE COUNSELOR.

THE COURT IS REITERATING ITS PRIOR ORDER THAT BOTH PARTIES SHARE JOINT LEGAL CUSTODY. RESPONDENT IS ADMONISHED THAT HER CONTINUED FAILURE TO COMMUNICATE WITH PETITIONER PRIOR TO MAKING DECISIONS OF LEGAL CUSTODY IS A VIOLATION OF THE COURT'S ORDERS AND MAY SUBJECT HER TO SANCTIONS, A CHANGE IN CUSTODY, OR BEING HELD IN CONTEMPT OF COURT.

FINALLY, REGARDING MAKE-UP TIME, IF EITHER PARENT MISSES HIS OR HER SCHEDULED PARENTING TIME DUE TO A MANDATORY WORK OBLIGATION AND PROVIDES FOURTEEN DAYS' WRITTEN NOTICE, THE PARTIES ARE ORDERED TO SCHEDULE MAKE-UP TIME WITHIN 60 DAYS OF THE MISSED VISIT. THE PARTIES ARE TO WORK TOGETHER IN GOOD FAITH TO SELECT MUTUALLY AGREED UPON DATES FOR THE MAKE-UP TIME. NEITHER PARTY MAY UNREASONABLY WITHHOLD CONSENT FOR THE REQUESTED MAKE-UP TIME.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE

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COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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6. JASON HARDOUIN V. JENAE NORELL

22FL0118

On March 9, 2026, Counsel for Respondent filed a Notice of Motion and Motion to be Relieved as Counsel. The motion was served on Respondent and on Petitioner's counsel on March 10, 2026.

Counsel states that there has been an irreparable breakdown of the attorney-client relationship due to a conflict of interest that cannot be waived. The motion is granted pursuant to Aceves v. Sup. Ct., (1996) 51 Cal. App. 4th 584, which states that the court may rely on Counsel's representation that there is a conflict, or that the attorney-client relationship has suffered an unrepairable breakdown, without knowing the underlying facts behind those statements. Withdrawal will be effective as of the date of filing the Proof of Service of the formal, signed order upon the client.

TENTATIVE RULING #6: THE MOTION TO BE RELIEVED AS COUNSEL IS GRANTED. WITHDRAWAL WILL BE EFFECTIVE AS OF THE DATE OF FILING PROOF OF SERVICE OF THE FORMAL, SIGNED ORDER UPON THE CLIENT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.